

# **International Environmental Law: Development, Principles and Mechanism**

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## **Introduction**

Global growth of public concern for the natural environment has been one of the most important developments in recent decades. Globalization has helped connect societies and their environmental fates more closely than ever before. At the same time, environmental problems increasingly cross national borders and giving serious impact to the health of the Earth. The development of more effective environmental laws and legal systems throughout the world has thus become critical to altering economic development and growth onto path of environmental sustainability.

However, the responses have been surprisingly progressive. Many countries are transplanting law and regulatory policy innovations of other nations, even when they have very different legal and cultural traditions. Many national regulatory initiatives also exhibit design and functional similarities that reveal a growing convergence around a few principal approaches to environmental regulation.<sup>2</sup>

Increased cooperation between governments, non-governmental organizations, multinational corporations, and the growth of transnational environmental networks have also significantly influenced the development of environmental law and regulation. As result, it has been emergence of International environmental law, which is a field of 'law' that is international, national and transnational in character at all once.

International environmental law is the set of legal principles and practices national, international, and transnational environmental regulatory systems to protect the environment and manage natural resources. Therefore, as a body of law, International environmental law is made up from different set of substantive principles and procedural methods that are specifically important or unique to governance and institution that concern of the environment across the world. It includes: (1) public international environmental law, which usually refer to the set of treaties and customary international legal principles governing the relations between or among nations, (2) national environmental law, which refer to the principles used by national governments to regulate and manage the behavior of private individuals, organization, and sub-national government institutions within their borders, (3) transnational law, commonly refer to the set of

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<sup>2</sup> See Tseming Yang & Robert V. Percival. *The Emergence of Global Environmental Law*. Ecology Law Quarterly, vol. 36, 2009, pp. 615-664, p. 616.

legal principles used to regulate the cross-border relationship between private individuals and organizations.<sup>3</sup>

## **Background**

As in other areas of law, religious or ethical beliefs may motivate individuals and governments to put force on environmental protection. An additional basis for action at the international level is desire to avoid interstate conflicts over depleted or scarce resources or consequent to incidents of trans-boundaries pollution.

From religious perspectives may motivate believers in favor of environmental protection. In Judaism-Christian religious traditions, in their holy books, it is state that the 'dominion' given humans over other living beings, not means to grant ownership over nature, but rather to establish the right to beneficial use, as a guardian or a trust. A Moslem study also noted that in relationship between Islam and environment, humans are seen as forming part of the universe, whose elements are complementary to one another in integrated whole. Humankind has a special relationship to other parts of nature, a stewardship of utilization and development. Many indigenous religions also contain guides on respect all life and impose duties on individuals and the community to avoid waste or harm the nature.<sup>4</sup>

Environmental ethicists construct environmental protection around concepts of equity and justice, as seen in three sets of relationships: among existing persons, between present and future generations, and between humans and other species. Self-interest also provides a rationale for attention to the environment. Humanity's concern with long-term human survival also underlies many legal and social norms and may be grounded in a genetic or biological imperative. Interest in survival of the human species requires that 'humanity' be seen to include not only present but also future generations. From these various origins, concern for the environment has emerged.<sup>5</sup>

## **Development of International Environmental Law**

### **1. First Treaties**

Before the 19<sup>th</sup> century, some municipalities and states made huge efforts to address to address local forms of pollution or nuisances, such as smoke, noise, and water pollution. The first international agreements dealt with shared living resources and appeared only in the 19<sup>th</sup> century, with the conclusion of international fishing treaties and agreements to protect various plant species. The main purpose for the agreements was to sustain the harvesting of economically

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<sup>3</sup> See *ibid.*, p. 617.

<sup>4</sup> See Alexandre Kiss & Dinah Shelton. (2007). *Guide to International Environmental Law*. *Martinus Nijhoff Publishers*: Leiden/Boston, p. 31.

<sup>5</sup> See *ibid.*, p. 31.

valuable species. This required international action, because many of species were migratory or they were located in areas outside national boundaries, such as on the sea.<sup>6</sup>

- Jay-Treaty (US - UK) on the Great Lakes on 1794,
- Treaty on Fishery Rights (France - UK) on 1867,
- Agreement on the *modus vivendi* on Seals in the Bering-Sea (US-UK) on 1891,
- Convention to Protect Birds Useful to Agriculture (USA - Canada) on 1902,
- Boundary Waters Treaty (Canada - UK) on 1909, and
- International Convention on the Regulation on Whaling on 1931.

However, there were several conventions with a more ecological target, but they regulate only special subject matters and have therefore limited effects such as:<sup>7</sup>

- “Convention destinée á assurer la conservation des diverses espèces animales vivant à l'état sauvage en Afrique qui sont utiles à l'homme ou inoffensives” on 1900.
- Convention Relative to the Preservation of Fauna and Flora in the Natural State on 1933.
- Convention on Nature Protection and Wild Life Protection in the Western Hemisphere on 1940.

Moreover, Before 1972, the field of international environmental law was not developed, even though some of environmental treaties have been put into action. The important parts of International Environmental Law for today (e.g. Hazardous chemical and waste, trans-boundary air pollution, climate change, ozone depletion) were no subject matter of any international treaty at that time.<sup>8</sup>

## 2. Stockholm Conference

Stockholm Conference was held in Sweden to discuss the human environment in 1972. It was influenced by discussion about the environmental situation, mainly in the US and in Europe later on. This conference originally came from the idea of Club of Rome, noted “Limits to Growth”, which painted an apocalyptic picture of the world.

This conference is regarded as the best organized and best documented UN conference at this time, which was attending by 114 of the 131 UN members at that time.<sup>9</sup> At this conference, there were noted the different perceptions about the problem<sup>10</sup>:

### Develop countries:

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<sup>6</sup> See Eike Albrecht. *International Environmental Law*. Power point presentation, Lecture no. 410441 = ERM BA 0404, Centre for Law and Administrative Sciences BTU Cottbus: Cottbus, p. 19.

<sup>7</sup> See *ibid.*, p. 20.

<sup>8</sup> See Alexandre Kiss & Dinah Shelton. (2007). *Guide to International Environmental Law*. Martinus Nijhoff Publishers: Leiden/Boston, p. 32.

<sup>9</sup> See John Scanlon & Francoise Buhenne-Guilmin, ed.. *International Environmental Governance; An International Regime for Protected Areas*. IUCN *Environmental Policy and Law Paper no. 49*, 2004, p. 22.

<sup>10</sup> See Eike Albrecht. *International Environmental Law*. Power point presentation, Lecture no. 410441 = ERM BA 0404, Centre for Law and Administrative Sciences BTU Cottbus: Cottbus, p. 33.

Environmental degradation is one of most serious problem.

**Less developed countries:**

Had different priorities (Group 77), which are:

- Poverty which causes pollution
- Resentment over the fact that the developed countries had consumed great part of the earth's natural resources were now asking the less developed countries to remain poor and to pay for the remediation and conservation for the Earth.
- New environmental standards block goods from developed countries from the markets of the developed countries.

However, with this background, the text of Stockholm declaration, therefore become a masterpiece of diplomacy. Which gave birth to the compromised of:

- Economic development is not necessarily contrary with the environmental protection
- Development could proceed with provided it avoided damaging the environment.

Stockholm Declaration has 26 principles which deal with the rights and obligations of citizens and governments with regard to the preservation and the improvement of the environment. It includes:<sup>11</sup>

- Responsibility to future generations (Principles 1, 2, 5).
- New right to a quality environment (Principle 1).
- Right of states to exploit its resources pursuant to their environmental (not: developmental) policies (Principle 21).
- States shall cooperate to develop international law regarding liability and compensation for extra-territorial harm (Principle 22).

Over post-Stockholm conference environmental treaties are counted, and it was giving birth of idea to create UNEP (United Nations Environment Programme), the first international organization with an exclusively environmental mandate.

### **3. UNCLOS (United Nations Convention on the Law of the Sea)**

The negotiations on a 'Law of the Seas' was made even before the Stockholm Conference. However, it opened for signature on 1982, and entry into force in 16 November 1994. UNCLOS is a kind of an umbrella-convention, it functioning as a framework for other international rules, regulations and implementing bodies, also there were a lot of the provisions are very general and need to be specified by additional agreements.

UNCLOS is can be considered to be the strongest environmental treaty. It possesses the fundamental and overarching character of a constitution for the oceans. It was resulted 320

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<sup>11</sup> See *ibid.*, p. 36.

provisions in total and 59 of it concern with environmental background. UNCLOS is seen as the codification of customary law in regard to the use of the oceans. And, it is applicable to *signatory* parties and to *non signatory* parties.<sup>12</sup>

#### **4. World Commission on Environment and Development**

World Commission on Environment and Development or better known as Brundtland Commission was created by the General Assembly in 1983 to develop a long-term environmental strategy for sustainable development. It is an independent body linked to but outside the UN system. It's mandate was to take up the critical relationship between reconciling or balancing the two subjects; to propose new forms of international cooperation on these issues to influence policies in the direction of needed changes; also, to raise the levels of understanding and commitment to action of individuals, organizations, businesses and governments. Based on the Brundtland report "Our Common Future" in 1987, it resulted:<sup>13</sup>

- Economic growth is desirable and possible within a context of sustainable development.
- Sustainability means: use the environmental resources in a manner that meets the needs of the present generation without compromising the ability of future generations to meet their own needs.

These conclusions above stressed the need for an integrated approach to development policies and projects that, if environmentally concerns, should lead to sustainable economic development in both developed and developing countries. The report emphasized the need to give higher priority to anticipating and preventing problems. "The Sustainable development" as development that meets present and future environment and development goals and concluded, that without an equitable sharing of the costs and benefits of environmental protection within and between countries, neither social justice nor sustainable development can be achieved.

#### **5. UNCED (United Nations Conference on Environment and Development)**

The Brundtland report led the United Nations to convene a second global conference on the environment in 1992 in Rio de Janeiro, Brazil. The very name of the conference reflected a change of approach from that of the Stockholm Conference on Human Environment.<sup>14</sup> UNCED held from June 3-14, 1992, it was the biggest summit level conference ever, which participated by 30,000 delegates from 176 countries and 103 head of states, more than 700 NGOs as official observers at the conference, and more than 8,000 NGOs at the parallel conference (Global Forum 92).<sup>15</sup>

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<sup>12</sup> See *ibid.*, p. 44.

<sup>13</sup> See *ibid.*, p. 45.

<sup>14</sup> See Alexandre Kiss & Dinah Shelton. (2007). *Guide to International Environmental Law*. Martinus Nijhoff Publishers: Leiden/Boston, p. 39

<sup>15</sup> See Eike Albrecht. *International Environmental Law*. Power point presentation, Lecture no. 410441 = ERM BA 0404, Centre for Law and Administrative Sciences BTU Cottbus: Cottbus, p. 48.

Two texts adopted at UNCED have a general scope: the Declaration on Environment and Development and an action program called agenda 21. The Declaration itself, is a short statement that includes 27 principles, which has a composite character that its legislative history can explain.<sup>16</sup> It's originally reflects the Stockholm Conference of 1972 on which it seeks to build the environmental protection, but its approach and philosophy are different. The important concept here is sustainable development, as defined by Brundtland report, which combines development and environment protection. Principle 4 can be help to explain in this regard: in order to achieve sustainable development, environmental protection shall constitute an integral part of the development process and cannot be considered in isolation from it.<sup>17</sup>

The second general document adopted by this Conference is Agenda 21, which is 'allows' a lot of exceptions in respect to environmental issues when developmental issues have priority. There are four main parts of this program:<sup>18</sup>

- Socio-economic dimensions (such as, habitats, health, demography, consumption, and production patterns)
- Conservation and resource management (such as, atmosphere, forest, water, waste, chemical products)
- Strengthening the role of non-governmental organizations and other social groups (such as trade unions, women and youth)
- Measures of implementation (such as, financing, institutions).

In sum, the Rio documents combines environmental protection and economic development in the concept of sustainable development. This concept can be understandable because there are so many challenges in order to protect the environment. The gap between *north-south* in terms of wealth and other resources creates difficulties in imposing the similar norms and standards through international agreements. The concern toward economic growth in international economic system raises opposition to trade barriers adopted to protect the environment.

Even though, at first some contested the importance of the Rio Conference legal texts, the two conventions and the Declaration represent achievement in international environmental law. Several principles of the Declaration, such as the public participation, the prior assessment of environmental impacts, precaution, notification of emergencies, and prior information and consultation on projects potentially affecting the environment of other states, have been included in numerous binding and non-binding international instruments since Rio and constitute emerging customary law rules.<sup>19</sup>

## **6. World Summit on Sustainable Development**

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<sup>16</sup> See Alexandre Kiss & Dinah Shelton. (2007). Guide to International Environmental Law. *Martinus Nijhoff Publishers*: Leiden/Boston, p. 39.

<sup>17</sup> See Eike Albrecht. *International Environmental Law*. Power point presentation, Lecture no. 410441 = ERM BA 0404, Centre for Law and Administrative Sciences BTU Cottbus: Cottbus, p. 50.

<sup>18</sup> UN Sustainable development: United Nations Conference on Environment & Development, Agenda 21. Rio De Janeiro, Brazil, 3 – 14 June 1992.

<sup>19</sup> See Alexandre Kiss & Dinah Shelton. (2007). Guide to International Environmental Law. *Martinus Nijhoff Publishers*: Leiden/Boston, p. 39.

This summit was held in Johannesburg, South Africa, from August 26 and September 4, 2002, the representatives of more than 190 countries, on the purpose to reaffirm commitment to the Rio principles, the full implementation of the Agenda 21 and the programme for the Further Implementation of Agenda 21, on the basis of the Declaration of Sustainable Development affirming their will to 'assume a collective responsibility to advance and strengthen the interdependent and mutually reinforcing pillars of sustainable development (economic development, social development and environmental protection) at local, national, regional and global levels'.<sup>20</sup>

At this conference, new level of dialogue between NGOs, social groups and state representative had been established. It was resulted:

- Political Declaration: affirmation of a collective responsibility, interdependent and mutually reinforcing pillars of sustainable development at the local, national, regional and global levels, and introduction of a element "social development" into the term of sustainable development.
- Implementation plan: there are goals to be met until 2022 (meeting people's basic sanitation needs, production and use of non harmful chemicals, restoration of the world's fish stocks, reduction in the rate of loss of biological diversity), and Widening of Agenda 21 on non-state actors, stating the importance and role of NGOs in the implementation progress of environmental policies.

Finally, environmental law and policy also must face with the lack of scientific certainty about many aspects of the physical world. Scientific uncertainty often attends issues of the nature and scope of the adverse environmental impacts of human activities. Moreover with the exacerbating the uncertainty, environmental damage and degradation often could be measurable after the causative actions have occurred. With this situation, questions have come up over how to develop environmental policy and how to allocate risk between the present and the future. However, many decisions cannot await scientific certainty, assuming something approaching certainty can ever be achieved.

## **Sources of International Environmental Law**

Similarly with the International economic law, International environmental law is also a branch of public international Law. The sources International environmental law are similar with all those international law generally outlined in Art. 38 (1) of the Statute of ICJ.

### **1. Treaties**

Treaties, also known as conventions, accords, agreements and protocols as defined by the 1969 Vienna Convention on the Law of Treaties. It is an international agreement concluded between States in written form and governed by international law, whether embodied in a single instrument or in two or more related instruments and whatever its particular designation. This definition include all international agreements to which intergovernmental or non-governmental

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<sup>20</sup> See *ibid.*, p.

organizations are parties as well as agreement concluded by internal agencies which is not entitled to bind the states.<sup>21</sup> E.g. Kyoto Protocol, Montreal Accord, Vienna Convention.

Commonly, treaties are not retroactive and only apply from the moment they enter into force for a particular state. Some treaties may allow denunciation after a specific notice period, but many others are of indefinite duration. Unless it was already stated, treaties commonly apply to all persons and territories over which the state has jurisdiction, including aircraft, ships, and space objects. Complex issues regarding the jurisdiction may arise where sovereignty is divided due to occupation or where sovereignty is absent, as in case of Antarctica.<sup>22</sup>

## 2. Customary International Law

The second most important source of international law, and thus of international environmental law, is customary law. Before treaties became as important as they are today, customary international law was the leading sources of international law. Once a rule of customary law is recognized, it is binding on all states, because it is then assumed to be a binding rule of conduct. Initially, customary international law as we know it today developed in the context of the evolving interaction among European states.<sup>23</sup>

International custom consists of two elements: State practices and *Opinion juris*. State practice can be evidence in several sources, including: ratification of treaties, participation in treaty negotiations and other international meetings, national legislation, the judgements of national courts, votes and other acts in the General Assembly, acts in other International Organizations, statements by ministers and diplomats, state pleadings, and level of tolerance are some a wide range of items. The state practice to contribute to the development of international law it has to be general that means a widespread and representative participation even without a considerable period of time.

Not all state practice forms customary international law. State acts engaged in because they are convenient or polite do not give rise to custom, because the sense of legal obligation is absent. Therefore, states must have a conviction that the rule is obligatory, referred to *opinion juris*. Such *opinion juris* may be implied if state practice is general and consistent over a lengthy time.<sup>24</sup>

Both of these elements are complementary and compulsory for the creation of customary international law. Since customary law requires this rather heavy burden of proof and its

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<sup>21</sup> See Francis Lansara. *Sources of International Environmental Law*. p. 2.

<sup>22</sup> See Alexandre Kiss & Dinah Shelton. (2007). *Guide to International Environmental Law*. Martinus Nijhoff Publishers: Leiden/Boston, p. 8.

<sup>23</sup> See Lal Kurukulasuriya & Nicholas A. Robinson. (2006). *Training Manual on International Environmental Law*. United Nations Environment Programme: Earthprint. p. 7.

<sup>24</sup> See Alexandre Kiss & Dinah Shelton. (2007). *Guide to International Environmental Law*. Martinus Nijhoff Publishers: Leiden/Boston, p. 8.



existence, is often surrounded by uncertainties, treaties have become increasingly important to regulate international relations among states.<sup>25</sup>

For example, Law of the sea treaty includes international customs. The Law of the Sea provides universal legal controls for the management of marine natural resources and the control of pollution. The treaty negotiations began in 1982 but came into force 12 years later, in 1994.

### 3. General Principles of Law

The third sources of international law, as included in article 38 (1)(C) of the Statute of International Court of Justice, are general principles of law.<sup>26</sup> General Principles of law are those concepts and rules found in the major legal systems of the world and appropriate for application in international relations.<sup>27</sup>

Since such rules have been adopted in national law, consent to their application in international law is would be expected. Therefore, general principles have often been used to fill in gaps in international law during the interstate litigation.<sup>28</sup>

General principles as a source of 'normativity' appear unclear and difficult to define and locate in contemporary practice. This could be potentially led to different attitudes towards them. Those who seen General principles as a tool for innovative normative assessment of social phenomena are less attached to traditional notions of state sovereignty, on the other side, those who remain suspicious towards General principles are also reluctant to leave the classical view that put the state in the central position on international law production.<sup>29</sup>

### 4. Judicial Decisions

The fourth source noted in Article 38 (1)(D) Statute of International Court of Justice. Judicial decisions and teachings of the most highly qualified publicists of the various nations, is qualified as an *additional* means for the determination of rules of law.<sup>30</sup> Decisions of the ICJ itself or other international tribunals, and writings of publicists are considered as source of IEL if there is no treaty on particular debatable issues in international environmental law, no customary law of IEL and no applicable general principles of IEL. Many international law journals publish articles by

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<sup>25</sup> See Lal Kurukulasuriya & Nicholas A. Robinson. (2006). Training Manual on International Environmental Law. United Nations Environment Programme: Earthprint. p. 8.

<sup>26</sup> See *ibid.*, p. 9.

<sup>27</sup> See Alexandre Kiss & Dinah Shelton. (2007). Guide to International Environmental Law. *Martinus Nijhoff Publishers*: Leiden/Boston, p. 8.

<sup>28</sup> See Lal Kurukulasuriya & Nicholas A. Robinson. (2006). Training Manual on International Environmental Law. *United Nations Environment Programme: Earthprint*. p. 8.

<sup>29</sup> See Maria Panezi. *Sources of Law in Transition; Revisiting General Principles of International Law*. *Ancilla Iuris (anci.ch)*, 2007: 66, pp. 66-79, p. 66.

<sup>30</sup> See Christopher Weeramantry & John Burroughs. *Internatonal Law and Peace: A Peace Lesson*. Hague Appeal for Peace, Peace Lessons from Around the World, July 2005, p. 8.

eminent lawyers addressing a great variety of issues pertaining to all aspects of international law.<sup>31</sup>

## 5. Soft Law

Article 38 is not intended to provide a complete list of sources of international law, similarly with international environmental law. There other possible sources which the ICJ might rely on to assist in its deliberations, such as acts of international or regional organizations, resolutions of the United Nations Security Council and the United Nations General Assembly, and Regulations, decisions and Directives of other European Union, among others. And also decisions of the Conference of the Parties, or declarations or statement, may contribute to the development of International environmental law.

States often place normative statements and agreements in non-legally binding or political instruments like noted above. Those instruments, often referred as 'soft law' which may make it easier to press dissenters into conforming behavior, because states are free to use political pressure to influence others to alter their policies, although generally they cannot demand that others conform to similar legal norms. These non-binding commitments may explain the reflections of the will of the international community to resolve a pressing global problem over the objections of one or a few states causing the problem, while avoiding the 'doctrinal barrier' of their lack of consent to be bound by the norm.<sup>32</sup>

## Basic principles of International Law

Basically, international law concern on several foundations principles, which have similar particular importance with the development of international environmental law. The article 2 UN charter sets four principles which considered as constitutional importance to the United Nations and its member states, which are:<sup>33</sup>

- State sovereignty; each state has exclusive legislative, judicial, and executive jurisdiction over activities on its territory.
- Cooperation; an obligation to cooperate with other states emerges from rational thinking for international law and finds reflection in the emerge of international agreements and institutions, while in the environmental aspects could be seen in term of equitable use of shared resources across boundaries.
- Common concern of humanity; the cohesion of every society is based upon and maintained by a values system. The protection of such fundamental values is generally recognized as a common concern of the community and is ensured through law (e.g. constitutional law). However, the right and duty of the international community to act in matters of common concern still must be balanced with respect for sovereignty. Respect

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<sup>31</sup> See Lal Kurukulasuriya & Nicholas A. Robinson. (2006). Training Manual on International Environmental Law. *United Nations Environment Programme: Earthprint*. p. 9.

<sup>32</sup> See Alexandre Kiss & Dinah Shelton. (2007). Guide to International Environmental Law. *Martinus Nijhoff Publishers: Leiden/Boston*, p. 9.

<sup>33</sup> See *ibid.*, p. 11.

for human rights, economic development, and environmental protection have been unified in the concept of sustainable development as a common concern of humanity.

- Common heritage of mankind; the nature of the common heritage is a form of trust whose principal aims are exclusive use for peaceful purposes, rational utilization in a spirit of conservation, good management or wise use, and transmission to future generations. These benefits may be shared through equitable allocation of revenue, even it's not essential feature in this principle.

## Common Legal Principles

New norms and principles are in the process of international environmental law which evolves to meet new challenges. Principles can show the essential characteristics of legal institutions, a design of fundamental legal norms, or fill the gaps in positive law. A principle also could provide the general the general orientation and direction to which positive law must conform, a rationale for the law, without itself constituting a binding norm. There are several legal norms emerge to assist the development of international environmental law, several of them are:

### 1. The Precautionary Principle:

It is a principle based on the idea that if the consequences of an action are unknown, but it is believed that there might be major or irremediable negatives consequences, so it is better to avoid such action. This concept deals with risk prevention, cost effectiveness and ethical responsibilities towards maintaining the integrity of natural systems. The precautionary principle is widely used in international environmental law.<sup>34</sup>

In general, the precautionary principle can be considered as the most developed form of prevention that remains the general basis for environmental law. Precaution means preparing for the potential, uncertain or even threats, when there is no sufficient proof that damage will occur. However, by putting this principle, cannot eliminate all *claimed* risks, because these are claims that lack any scientific basis.<sup>35</sup>

The principle was used in the international treaty of the Montreal Protocol in 1987, which had the goal of reducing the emissions of substances (CFCs) that depleted the ozone layer. The use of the principle was based on scientific evidence showing that certain substances harmed the ozone layer and therefore had to be banned and controlled.

### 2. Polluter-Pay Principle:

Polluting parties pay for the damage done to the natural environment. It is not as widely accepted in international treaties as the precautionary principle is. This principle intends to hold the polluters accountable for their actions.

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<sup>34</sup> See Anna Negrin, Erin Bissonnette & Ludmilla Marenco. *International Environmental Law*. Paper presentation, March 2006, p. 4.

<sup>35</sup> See Alexandre Kiss & Dinah Shelton. (2007). *Guide to International Environmental Law*. Martinus Nijhoff Publishers: Leiden/Boston, p. 95.

The polluter's pays principle seeks to impose the costs of environmental harm on the party responsible for the pollution. This principle was set out by the OECD as an economic principle and the most efficient way of allocating costs of pollution prevention and control measures introduced by the public authorities in member countries. It is intended to encourage rational use of scarce environmental resources and to avoid distortions in international trade and investment.<sup>36</sup>

### **3. Sustainable Development**

Sustainable development defined as "*development that meets the needs of the present without compromising the ability of future generations to meet their own needs*". It was popularized in the Rio Earth Summit in 1992, which stated among other things that:

- Humans have the right to live healthy and productive lives in harmony with nature
- Economic development today can't undermine the development and environmental needs of future generations

Sustainable development concerns the problem of environmental degradation, which is due to human activity. Environmental degradation happens when human consumption of renewable resources (i.e. wood) occurs at a faster pace than nature's ability to replenish them.

However, at the Johannesburg World Summit on Sustainable Development focused not only integrating the concept of economic growth and environmental protection, but also emphasis on eradicating poverty and social problems. In early 2002, the first attempt to define current sustainable development appear in article 3 (1)(A) of the Convention for Cooperation in the Protection and Sustainable Development of the Marine and Coastal Environment of the Northeast Pacific (Antigua Convention);<sup>37</sup>

*For the purpose of this Convention sustainable development means the process of progressive change in the quality of life of human beings, which places it as the center and primordial subject of development, by means of economic growth with social equity and the transformation of methods of production and consumption patterns, and which is sustained in the ecological balance and vital support of the region. This process implies respect for regional, national and local ethnic and cultural diversity, and full participation of people in peaceful coexistence and in harmony with nature, without prejudice to and ensuring the quality of life of future generations.*

## **Mechanism of International Environmental Law: The Kyoto Protocol Agreement**

Kyoto protocol is an International environmental treaty with the goal of achieving the "*stabilization of greenhouse gas concentrations in the atmosphere at a level that would prevent*

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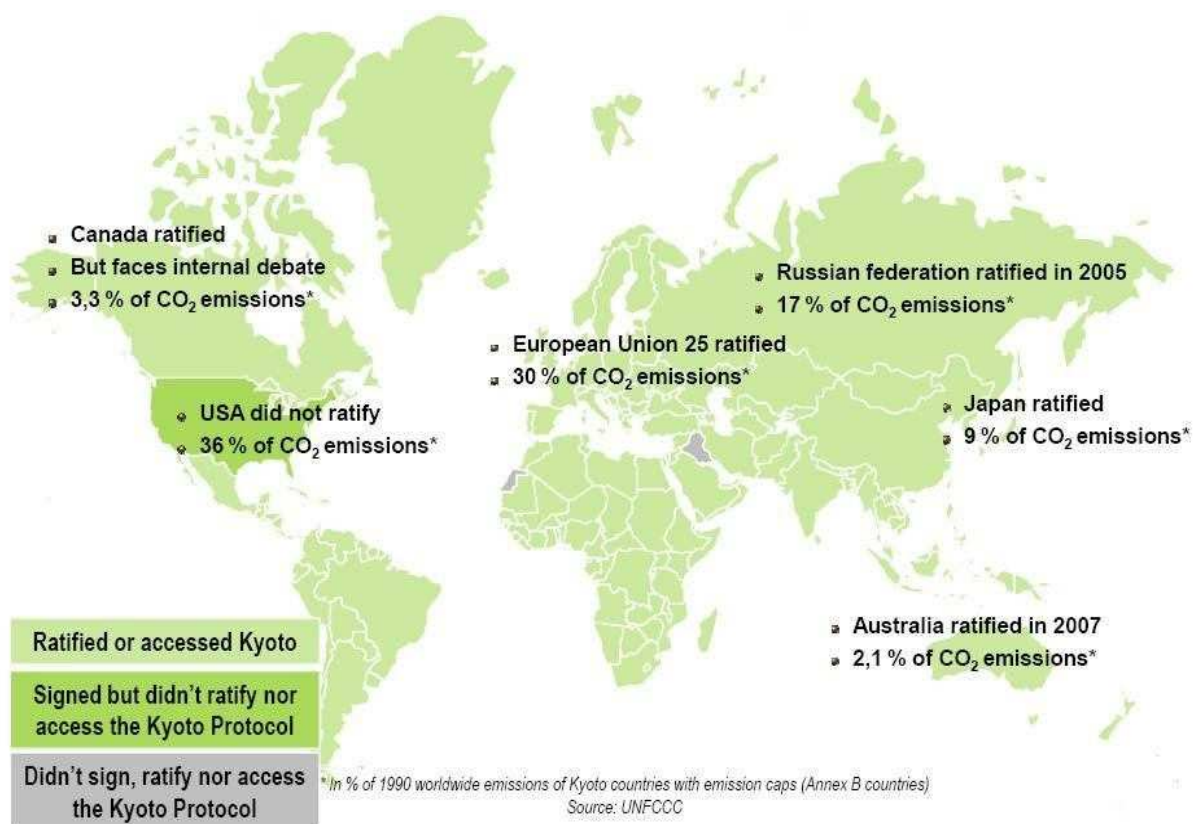
<sup>36</sup> See *ibid.*, p. 96.

<sup>37</sup> See article 3 (a) Convention for Cooperation in the Protection and Sustainable Development of the Marine and Coastal Environment of the Northeast Pacific (Antigua Convention). 2002.

*dangerous anthropogenic interference with the climate system.*” The treaty was negotiated in Kyoto Japan in 1997. It opened for signatures in 1998 and closed in 1999. And later on, the agreement came into effect in February of 2005.

As of January 2006, 160 countries have signed and ratified the Kyoto protocol. Countries who has signed and ratified the protocol are then in a legal agreement, but nations who have only signed and not ratified have no agreement. However, the treaty has agreed on 3 truths:<sup>38</sup>

1. The largest share of global emissions of greenhouse gases is from developed countries.
2. By per capita, emissions in developing countries are still fairly low.
3. The share of global emissions in developing countries will grow to meet social and development needs



The Kyoto protocols main goal is to cut global emissions of greenhouse gases. The goal is to stabilize greenhouse gas concentrations in the atmosphere at a level. That will prevent dangerous interference with the climate system. The specific goal is to reduce the greenhouse gas emissions by 52% of what they were globally in 1990. The goal is to lower overall emissions of six

<sup>38</sup> See Anna Negrin, Erin Bissonnette & Ludmilla Marenco. *International Environmental Law*. Paper presentation, March 2006, p. 5.

greenhouse gases: 1.) Carbon dioxide, 2.) methane, 3.) nitrous oxide, 4.) sulfur hexafluoride, 5.) HFC's , and 6.) PFC's.

## **Emissions Trading**

All ratified countries have agreed to a certain emission level, but many countries have emission limits that are set above their current production. The extra amounts of credits can be sold to other countries that have gone over their limit. Emission credits are sold on the open market. Emission trading rewards countries that meet their target emission level and provided financial incentives to meet level or to be below levels. Countries can earn and trade emission credits in 3 ways:<sup>39</sup>

- The Clean Development Mechanism- they can earn credits by investing in projects in developing countries.
- Joint Implementation- they can invest in projects to help other countries to reach their emissions target set out by the protocol.
- International Emissions Trading- buying and selling emission credits.

## **Criticisms of Kyoto**

The protocol states that developed countries have to pay and supply emission reducing technology to other countries for climate related studies and projects. This is also a criticism to the protocol and a main reason for some countries opposition.

Some nations who are sceptical of global warming view the protocol as a scheme to retard the growth of developed countries and to transfer wealth to underdeveloped countries.<sup>40</sup>

Another main criticism of the protocol is that developing countries, such as China and India, are exempt from requirements of the treaty because they were not major contributors of greenhouse emissions during the industrialization era.

## **Case Study: 1. Canadian Position**

Canada ratified the Kyoto Protocol in December 2002. Inside Canada, there is approximately a 70% support rate for the treaty that came from the people. However, the opposition is mostly from the Alberta government, business groups and non-government climate scientists.<sup>41</sup>

There was assumption if the government ratified the Protocols, it would be caused bad impact in terms of economy and trade. Before 2002, the Alberta government has had a lot of concern over this protocol, because they are the countries primary producers of oil and gas, and will be significantly affected by the emission level limits.

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<sup>39</sup> See *ibid.*, p. 5.

<sup>40</sup> See *ibid.*, p. 6.

<sup>41</sup> See *ibid.*, p. 6.

## Case Study: 2. Alternative Measures

Currently, in the United States, there are 9 North-eastern states involved in the Regional Greenhouse Gas Initiative. This is a state level emissions program, which demonstrating that reduction in emissions can be achieved without ratifying the Kyoto protocol.

Moreover, another alternative measures shows cooperation among countries, similarly with the efforts to protect the environment, for example, The Asia Pacific Partnership on Clean Development and Climate which an agreement includes 6 big nations. The agreement allows countries to set their own goals for emission reductions, but with no enforcement or negative repercussions. This agreement is more flexible then the Kyoto protocol and that is why Australia, China, Japan, South Korea and the U.S prefer it.<sup>42</sup>

## Conclusion

International law may be considered as an old tree, however it still develop new branches. One of them is international environmental law, which can be compared with law of the sea, even the international law of human rights. All of these branches have their different characteristics, but also shared similarity of general international law.

One of the main purposes of international environmental law is that it aims to protect non-human parts of the natural world, as well as humans: plants, animals, water, atmosphere, and systems that contain several or all of these elements. It also includes the natural world as it has been altered by human activities, such as landscapes. Although, it's linked with the life and well being of humans, the final objective of environmental law is outside the world of humans who create the legal system and implement its norms. Stakeholders, as subject and object, and their relations to environmental elements may have an important role to such play in environmental protection, but they are not the direct object of such protection.

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<sup>42</sup> See *ibid.*, p. 6.

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